

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-06)

CASE NO.
2023-27804
BOOK & PAGE NO.
Page 1 of 1
PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST RANK/SURNAME Lieutenant Singh,	FIRST Ravi	M.I.	COMMAND Information Technology Service Div.
SHIELD NO. 0000	TAX REGISTRY NO. 949670	DATE APPOINTED July 6, 2010	
RANK/NAME OF COMPLAINANT Deputy Chief Prosecutor Andre Applewhite			COMMAND CCRB -Administrative Prosecution Unit
DATE OF CHARGES February 8, 2023	DATE TRIAL COMMENCED May 24, 2023	DATE TRIAL CONCLUDED May 24, 2023	

TRIAL COMMISSIONER

Honorable Vanessa Facio-Lince

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Lieutenant Ravi Singh, on or about September 24, 2021, at approximately 1613, while assigned to the 10 Precinct and on duty, in the vicinity of 12th Avenue and West 34th Street, New York County, wrongfully used force, in that Lt. Singh used his asp against § 87(2)(b) without police necessity.	NOT GUILTY	It is recommended that Respondent be found Not Guilty.	

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER

7/18/2023
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

7/26/23
DATE



POLICE DEPARTMENT

July 18, 2023

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2023-27804
Lieutenant Ravi Singh	:	
Tax Registry No. 949670	:	
Information Technology Service Division	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Pamela Fairclough, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: James Moschella, Esq.
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279

To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

CHARGES AND SPECIFICATIONS

1. Lieutenant Ravi Singh, on or about September 24, 2021, at approximately 1613, while assigned to the 10 Precinct and on duty, in the vicinity of 12th Avenue and West 34th Street, New York County, wrongfully used force, in that Lt. Singh used his asp against § 87(2)(b) without police necessity.

P.G 221-02, Page 2, Prohibitions 11 & 12

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on May 24, 2023. Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. On stipulation, the Civilian Complaint Review Board (CCRB) entered in evidence body-worn camera (BWC) footage and Department of Transportation (DOT) surveillance videos of the incident, as well as still images derived from that footage. § 87(2)(b) the Subject in the underlying case, did not report this incident to CCRB, did not participate in the investigation of the alleged misconduct and did not testify at this hearing. Sergeant Ricardo Roman testified on Respondent's case and Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, the Tribunal finds Respondent Not Guilty of the charged misconduct.

ANALYSIS

It is uncontested that on September 24, 2021 Respondent and Sergeant Roman, who was Respondent's driver, received multiple calls over the radio for a disorderly person attacking people and removing their property along the West Side Highway. (Tr. 36, 93) On their way to the location of the incidents, they were flagged down by a victim who had also been attacked by

a person who tried to take his motorcycle. Respondent and Sergeant Roman instructed this victim to get into their marked RMP to conduct an area canvas for the perpetrator. (Tr. 36, 94) The victim provided them with a description of the alleged perpetrator. While they were driving northbound on the West Side Highway approaching 12th Avenue and 34th Street, Sergeant Roman testified that he observed a person fitting that description fighting with someone on the street. The victim pointed to the Subject in this matter and identified that person as his attacker. (Tr. 37)

Respondent and Sergeant Roman exited their marked RMP and approached the Subject, who appeared to be forcibly taking a scooter from yet another person. Respondent and Sergeant Roman issued verbal commands to the Subject to stop. (Tr. 94-95) CCRB Ex. 1- Respondent's BWC - captured Respondent attempting to grab the Subject but she began actively resisting, flailing her arms and attempting to flee. Respondent warned the Subject that if she didn't stop, she would be tased. (CCRB Ex. 1 at 01:04-01:07). Simultaneously, Sergeant Roman activated his Taser and told the Subject to get down. (Tr. 38) The Subject failed to comply with police directives, pushed Respondent, causing him to fall on the ground, and ran away. (Tr. 41, 95) Respondent attempted to grab the Subject again but she freed herself from her outermost garment and fled. (*Id.* at 01:07)

The Subject proceeded to run away from the officers across several lanes of traffic on the West Side Highway, forcing many cars to stop short to avoid hitting her (*Id.* at 01:08-01:20). As she was running away from the officers, she attempted to get into a white van that was stopped at a traffic light by pulling on the door handle on the driver's side. The van was able to drive away without her gaining entry. (CCRB Ex. 1 at 01:38) The Subject then ran toward Respondent's RMP where the victim was waiting. The victim attempted to grab the Subject. (Tr. 42) As the

officers chased the Subject, Sergeant Roman repeatedly commanded her to stop and get down. Sergeant Roman testified that he deployed his Taser in an attempt to stop her but the prongs missed. (Tr. 43; CCRB Ex. 1 at 01:45)

The victim was able to grab the Subject, giving Respondent and Sergeant Roman an opportunity to apprehend her. Sergeant Roman and the victim were able to drag the Subject to the ground. Sergeant Roman attempted to place handcuffs on her, but she was still actively resisting and flailing her arms. At that point, Sergeant Roman placed his Taser against the Subject's body and used the "drive-stun mode" to subdue her. (Tr. 44; CCRB Ex. 1 at 02:00)

At trial, Sergeant Roman recalled that at that time, Respondent attempted to assist him and he placed his asp on her back, but the Subject continued moving and prevented the officers from placing handcuffs on her. (Tr. 46) Sergeant Roman testified that Respondent did not strike the Subject with the asp but merely held it on her back while Sergeant tried to place handcuffs on her. After several seconds Sergeant Roman was able to get the Subject in handcuffs. Thereafter, additional units and EMS arrived at the scene. (Tr. 49-50)

At issue in this case is whether Respondent's use of an asp to control the Subject violated Department guidelines. The charges against Respondent alleged that he violated P.G. 221-01 paragraph 11a (effective 7/1/20),¹ which states in relevant part that members of service should: "Avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject's chest or back, thereby reducing the subject's ability to breathe." The preponderance of the credible evidence presented at trial failed to establish that Respondent used his asp in a prohibited manner.

¹ It should be noted that Patrol Guide 221.02 was amended on 7/16/20 and Interim Order 66 amended it again on 7/6/21. The relevant portion of the Patrol Guide that was in effect at the time of this alleged misconduct is cited above.

The police encounter at issue here came to the attention of both IAB and CCRB as the result of Respondent's notification to IAB. As Respondent explained, "when someone is drive stunned we are required to call the duty captain and required to notify IAB." (Tr. 105) The Subject did not report this incident to CCRB, did not participate in the investigation of the alleged misconduct and did not testify at this hearing. Since the Subject did not testify, the record is devoid of credible evidence regarding how she physically felt during this incident, the amount of pressure she experienced when Respondent placed his asp with the back of her neck and back or whether the placement of the asp reduced her ability to breathe.

This tribunal credits Respondent's testimony that he did not exert pressure on the back of Subject's neck or back in a manner that would cause her breathing to be restricted, as suggested by CCRB. (Tr. 100) Respondent's testimony concerning the steps he took to gain the Subject's compliance was straightforward and convincing. Respondent testified that after the Subject initially ran away from him, a perilous chase ensued. All the while, he and his partner were trying to gain compliance with repeated verbal commands. Respondent further elaborated that when the Subject ran toward their RMP, he observed her open the passenger side door causing him to think that she was going to try to steal it. (Tr. 96; CCRB Ex. 1 at 01:49-01:53) While the victim and Sergeant Roman struggled with the Subject, Respondent was on the driver's side of the RMP making sure that the keys were not in the car and that it was secured.

Moreover, I credit Respondent's explanation that he then took out his asp to assist Sergeant Roman in gaining control of the Subject. He testified that he intended to use the asp "to strike her upon her body to gain compliance" (Tr. 97) He was not, however, able to do so because "there was no space to do that without hitting the civilian or hitting Officer Roman." (Tr. 97) In that moment, Respondent assessed that the potential for collateral injury to his partner

and the victim existed. He, therefore, opted to use the asp to hold down the Subject by placing it across her back in order to prevent her from running away so that Sergeant Roman could gain control and handcuff her. (Tr. 98-99) The use of the asp under these chaotic and dangerous circumstances was reasonable and within guidelines.

The relevant portions of the BWC footage (CCRB Ex. 1 and 2) and DOT video (CCRB Ex. 3) corroborate Respondent's account and explanation. They portray the Subject actively resisting arrest as Respondent and Sergeant Roman attempt to secure her. CCRB Ex. 3 shows the victim grabbing onto the Subject when she tries to enter the RMP and Sergeant Roman struggling with her as well. (CCRB Ex. 3 at 01:50) The victim and Sergeant Roman are then able to bring Subject to the ground. (*Id.* at 02:00) About two seconds later, Respondent can be seen standing over the Subject, who was lying face down on the ground but trying to get up, and bending over her while Sergeant Roman is bent over the lower half of Subject's body. The victim then moves to one side while Respondent and Sergeant Roman are still engaged with her. (*Id.* at 02:09) Other officers begin to arrive on scene shortly thereafter. It appears that Respondent and Sergeant placed the Subject in handcuffs by the time the other officers arrived. (*Id.* at 02:40).

CCRB Ex. 1 depicts the same interaction described above but from a different angle. In CCRB Ex. 1, the Subject can be seen on the ground being held down by the victim as Sergeant Roman is standing over the lower portion of her body. (CCRB Ex. 1 at 01:55-02:00) The sound of the electric current of a Taser can be heard simultaneously. Respondent approached them with his asp in hand and attempted to position himself between the victim and Sergeant. Respondent then moved toward Subject's upper torso and placed his asp across the nape of her neck while commanding her to put her hands behind her back. The Subject's arm is at her side as

Respondent is repeatedly telling her to put her hands behind her back. (*Id.* at 02:01-2:16) The Respondent then shifts the position of his asp from the back of Subject's neck to across her shoulder blades. (*Id.* at 02:19-02:23) The BWC shifts at 02:24 so the interaction between the officers and the Subject cannot be seen again until 02:35, at which point the Subject is being handcuffed by Sergeant Roman.

In sum, the evidence presented at trial is insufficient to establish that Respondent violated the Patrol Guide by using his asp during the apprehension of the Subject. Respondent's use of his asp was measured and calculated. Indeed, as captured on video, Respondent's asp was on the back of Subject's neck and back for a limited amount of time thus minimizing the opportunity for pressure to be applied in a manner that would restrict her breathing. Accordingly, I find Respondent Not Guilty of the charged misconduct.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED

JUL 26 2028

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

July 17, 2023

Honorable Edward A. Caban
Acting Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Lt. Ravi Singh
Tax Registry No.: 949670
Command: ITSD/359
Disciplinary Case NO.: 2023-27804

Commissioner Caban:

The above-referenced case is being prosecuted by the undersigned, Pamella Monica Fairclough, Administrative Prosecutor for the New York City Civilian Complaint Review Board (hereinafter – CCRB), pursuant to the Memorandum of Understanding between the New York City Police Department (hereinafter – NYPD).

Respondent, Lieutenant Ravi Singh is charged as described below:

1. Lieutenant Ravi Singh, on or about September 24, 2021, at approximately 1613, while assigned to the 10th Precinct and on duty, in the vicinity of 12th Avenue and West 34th Street, New York County, wrongfully used force, in that LT. Singh used their ASP against § 87(2)(b) without police necessity.

PG 221-02, Page 2, Prohibition 11 USE OF FORCE and PG 221-02 Page 2, Prohibition 12

CCRB have reviewed the June 30, 2023, draft decision of Assistant Deputy Commissioner-Trials, Vanessa Facio-Lince (hereinafter, ADCT). We respectfully submit the following comments regarding the draft decision pursuant to Fogel v. Board of Education, 48 A.D.2D 925 (2ND Dept. 1975), citing controlling authority pursuant to the Matter of Sorrentino v. State Liquor Authority, 10 N.Y.2d 143, 176 N.E.2d 563. 218 N.Y.S.2d 635 (Court of Appeals of N.Y. 1961).

Assistant Deputy Commissioner-Trials, Vanessa Facio-Lince (hereinafter “ADCT”) found Respondent Singh not guilty of Specification One (1). CCRB, I respectfully request that you

reject ADCT's findings and find the Respondent guilty of Specification One (1) and accept CCRB's recommended presumptive penalty - forfeiture of twenty (20) vacation days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

CCRB introduced the following evidence:

CCRB submitted Exhibit one (1), which is Lt. Singh's (hereinafter "Respondent") Body Worn Camera (hereinafter "BWC") recording that evidence portions of the incident establishing Respondent's guilt. Respondent-BWC's recording is ten minutes and fifty-six second (10:56). The evidence showed that Respondent and PO Roman were travelling in a marked police car with PO Roman being the driver of the vehicle. Respondent exited the police vehicle at the thirty-four seconds (00:34) mark of the recording and ran onto a bike path where § 87(2)(b) was fighting with two men as she was pulling on one man's scooter.

The recording briefly showed Respondent on the ground then it moved to showing him standing up (BWC recording starting 00:58). It further showed Respondent grabbing § 87(2)(b) by her top and ordering her to stop (BWC starting at 1:00). § 87(2)(b) did not comply and Respondent warned her that she was going to be tased and instructed PO Roman to tase her (BWC at 1:00 - 1:07). While Respondent was holding onto § 87(2)(b) blouse, she slipped it off and ran away across the West Side Highway, the Members of Service (hereinafter, "MOS") followed her on foot (BWC starting at 1:07).

It is undisputed that § 87(2)(b) fled from the Respondent and PO Roman across several lanes of traffic across the Westside Highway and she was only wearing a black short and a black brassiere. Also, during the chase, just prior to § 87(2)(b) being restrained by the civilian and PO Roman, she ran toward a white van and briefly pulled on the driver's door, then ran back toward and around the RMP. All the foregoing descriptions are viewable in Respondent's BWC recording from 1:07 to 1:37. Respondent then ran towards his RMP and removed the keys from the ignition as PO Roman and the civilian continued to chase § 87(2)(b) from the rear of the RMP to the passenger side of the said vehicle (BWC at 1:48). Respondent ordered PO Roman at the one minute and forty-six seconds (01:46) mark of the recording to tase § 87(2)(b) which PO Roman complied, but the Taser's-prongs missed. However, based on the sound, PO Roman continued operating his taser even though that is not visible. At the time Respondent forcibly restrained § 87(2)(b) by her neck with his APS, she was already restrained on the ground. Even when she moved her one hand, she was unable to get up from the ground (BWC at 1:58 to 2:38 including portions of the recording that was only audible).

In portions of the recording including the portion of the recording that was only audible, but you heard the taser operating in stun drive mode several times, and § 87(2)(b) was moaning, § 87(2)(b) saying "ha...a" as the taser was fired, (BWC at 1:58 to 2:38). The recording beginning at one minute and fifty-three seconds (01:53) mark evidenced Respondent Singh approached as she laid face down on the roadway with the civilian straddling her upper back, § 87(2)(b) moving

slightly to the side while the civilian is on her back, PO Roman is at the lower half of her body using his taser on her, and otherwise restraining her. Respondent ran up to them as he opened and extended his ASP and saying get down. However, the evidence showed that § 87(2)(b) was already face down on her stomach, (BWC at 1:53 as cited above). The civilian was still on mostly on her upper back and PO Roman at the lower half of her body. § 87(2)(b) at a time did have one palm flat on the concrete but she was already restrained face down on roadway as described above. (BWC starting at 1:56).

Respondent ran with his ASP in hand attempting to hit § 87(2)(b) but instead poked at her lower back as his action was obstructed by the civilian that was still sitting on § 87(2)(b) back while PO Roman restraining and tasing her. Respondent then went to § 87(2)(b) upper body area and applied his restrained to her neck with his ASP as she is down on the concrete roadway. The recording further showed Respondent holding his ASP by each end pressing down on § 87(2)(b) neck, he had one foot firmly on the ground and only the shoe-tip of his other foot was touching the ground. While in the above-described position, Respondent was standing over § 87(2)(b) as she is on the ground, he leaned forward on the ASP that is on Her neck.

The recording also evidenced that two officers arrived when the handcuffing process as was being finalized, they immediately assisted PO Roman then Respondent stepped away and other MOS continued to arrive. The evidenced showed that once § 87(2)(b) was captured by the civilian and PO Roman, she was unable to escape because they both were larger in size. Also, Respondent joined the civilian, PO Roman, so § 87(2)(b) was outnumbered by three and she was restrained face on roadway, an under their control.

Also, Respondent admitted to his colleagues that he slipped and fell as he was attempting to grab § 87(2)(b) [BWC recording at the seven minutes and thirteen seconds (07:13)].

CCRB Exhibit Two (2) – Sergeant BWC recording (since he was a Police Officer at the time of the cited incident), as such hereinafter he is referred to as “PO Roman.” PO Roman’s BWC recording was ten minutes and thirty-eight seconds (10:38). The recording started at zero-zero (00:00) to two minutes and eight second (02:08) captured the events on the bike path, the chase across the highway to the incident location. At about one minute (01:00) to two minutes and twenty-three second (02:23), it evidenced the civilian rapping his arms around § 87(2)(b) head and bringing her body down as PO Roman was tasing § 87(2)(b) in stun touch mode by her upper body at the under-arm area. The recording became unviewable from two minutes and twenty-four second (02:24) to three minutes and eighteen seconds (03:18). During above-stated time the incident was only audible. Respondent’s was heard ordering § 87(2)(b) to put your hand behind her back or I will “f..king hit you” (BWC at 2:30.” § 87(2)(b) was heard moaning and saying ha...ha from time to time as you hear the taser operating. You also heard other police vehicles arriving at the scene. The recording went dark after the civilian took § 87(2)(b) down to the ground. The recording was visual again showing § 87(2)(b) in handcuffed and being restrained by MOS other than the civilian, PO Roman, and the Respondent. The rest of the

recording showed what happened after § 87(2)(b) was forcibly restrained by her neck and in handcuffs. Respondent admitted to his colleagues that he slipped and fell as he got off balance (PO Roman's BWC 07:31 to 07:42).

The DOT Video recording was CCRB's Exhibit 3 and it captured the incident in the vicinity of 12th Avenue and West 34th Street and it is five minutes and twenty-seven seconds (05:27). This evidence is only visual. It showed § 87(2)(b) running behind the RMP towards the passenger side of the RMP, she opened its door briefly. She was grabbed by the civilian and taken down to the ground, and PO Roman assisted the civilian. As § 87(2)(b) is on the ground Respondent came over pushed the civilian off § 87(2)(b) body and replaced himself. The recording showed Respondent pressing down on § 87(2)(b) neck as she is lying face down on the roadway. Two other Officers arrived and immediately assisted with § 87(2)(b) while she was still face down on the roadway. At 02:50 § 87(2)(b) was not moving. At about 04:46 § 87(2)(b) attempted to flee while in handcuffed, two MOS other than Respondent and PO Roman held her arms and placed her against the RMP, no other officers were needed.

CCRB Exhibits from 4 and 5 were video clips taken from Respondent's video showing normal recording speed in Exhibit 4 and at a speed of fifteen frame per second in Exhibit 5 that evidenced Respondent holding the ASP on § 87(2)(b) neck.

Exhibits 6, 7, 8, and 9 are photographs extracted from Respondent's recording of the incident that showed Respondent's hands on the ASP in various positions as he held his ASP to § 87(2)(b) neck.

Exhibits 10 and 11 were a video clips also taken from Respondent's recording that showed at the regular speed and at fifteen frame per second speed that showed exactly how, where, and how long respondent held the ASP to § 87(2)(b) neck.

RESPONDENT RAVI SINGH WRONGFULLY USED FORCE AGAINST § 87(2)(b)

PG 221-02, Page 2, Prohibition 11 USE OF FORCE - states "Apply no more than the reasonable force to necessary to gain control."

- a. "Avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject's chest or back, thereby reducing the subject's ability to breathe"

PG 221-02 Page 2, Prohibition 12 - states that "assess the situation continually and adjust the use of force as necessary."

The ADCT at Page four (4), paragraph four (4) of the draft decision determines that the only applicable section of the law is Prohibition 11a, as described above.

CCRB disagree with the tribunal findings and argues that the evidence submitted did establish the charge and that we met our burden by the preponderance of the evidence. Respondent used excessive, unnecessary, and unreasonable force when he placed his ASP on § 87(2)(b) neck after she was just tased by PO Roman, taken down ground by a civilian, and was being held by the civilian and PO Roman.

PG 221-02, Page 2, Prohibition 11 USE OF FORCE states in the first sentence states that “Apply no more than the reasonable force necessary to gain control.” It requires the members of services only to use the force that is necessary and reasonable under the circumstance to gain control.

Even though the Patrol Guide in Prohibition 11 have subsection “a”, which states “avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject’s chest or back, thereby reducing the subject’s ability to breathe.” Section “a” is a guidance and it is instructions to members that they should avoid any actions that may obstruct breathing. It is not mandating that only the described actions stated in “a” are prohibited and punishable. The guidance stated in Section “a” of the above-cited PG section are not mandatory elements that must be established to find a MOS guilty of Prohibition 11. PG 221-02, Page 2, Prohibition 11 mandatory elements are stated in the first sentence, “apply no more than reasonable force necessary to gain control. CCRB maintained the evidence supports a finding that § 87(2)(b) was already under the MOS’ control and Respondent’s forcibly restraining her by the neck was unnecessary at that time. All her prior actions and threats were abated at time Respondent restrain her by his ASP on her neck; as such Respondent action was unnecessary and unreasonable.

CCRB’s position is that the charged specification does not require an injury for the Respondent to be found guilty. The ADCT’s findings that § 87(2)(b) did not report the incident is factually incorrect and not supported by the evidence. It is correct that § 87(2)(b) did not participate in the hearing, however there is no evidence adduced at the hearing or presented that § 87(2)(b) did not file a report regarding Respondent’s action. Also, the Respondent has a duty to report, as the ADCT stated in her draft and Respondent fulfilling his duty to report the force that was used against a person should not be a basis to excuse prohibited force as rationalized by the ADCT on page five (5), paragraph one (1) of her draft.

CCRB further argued that a review of all the evidence showed that at the time of the charge incident the situation was under control, in that § 87(2)(b) were already restrained on the ground by two individuals larger than her in every way, Respondent Singh was the additional person, and then six more officers were immediately there. § 87(2)(b) flight was over. Based on her size comparing to the respondent, PO Roman, and the civilian, § 87(2)(b) was under control. Also, both MOS’ BWC recording did not capture everything that was happening as § 87(2)(b) was restrained on the ground.

Additionally, PG 221-01, page 1, first directive to the MOS is that “the primary duty of all members of the service is to protect human life, including the lives of individuals being placed in police custody.” The foregoing NY Patrol Guide section is applicable to all actions by MOS. In the instant matter, Respondent’s restraining § 87(2)(b) by her neck with his ASP is a disregard for her life in the particular moment that Respondent used his ASP on her neck when all threats to civilians and the MOS were already abated. She was being restrained by two other individuals and respondent being the third person. Also, six additional MOS were arriving.

Further, PG 221-01 is part of the analysis when determining the appropriateness of the force a MOS use including charges pursuant to PG 221-02 Prohibition 11 and Prohibition 12. As such, CCRB makes the below arguments based on the evidence and the factors stated in PG 221-01 that should be considered in determining a violation of the two above-cited Prohibitions:

a. “The nature and severity of the crime/circumstances,” CCRB acknowledges that the § 87(2)(b) was being arrested for alleged serious crimes, however, at the time Respondent forcibly further restrained § 87(2)(b) by pressing down on her neck with his ASP, § 87(2)(b) was apprehended and was under restrained by one officer and a civilian. She was being restrained on the ground face down on the public roadway. Also, the evidence showed that § 87(2)(b) was having some kind of mental break. Evidenced in the recordings by her behaviors and even inquiries from the Respondent and others. The foregoing does not excuse her behavior but must be considered in the totality of the circumstances how much § 87(2)(b) was cognizant at the time of the alleged crimes, flight, and following the MOS’ instructions.

b. “Actions taken by the subject,” which is described above in the summary of the evidence. However, when Respondent forcibly restrained § 87(2)(b) by her neck, all events had completed, and § 87(2)(b) was under Civilian and MOS restrained. She could not further harm others, flee, or was a threat because PO Roman and the civilian had her restrained on the ground, and at least six other officers arrived just as the handcuffing was being finalized.

The ADCT drafted decision at page four (3) citing MOS’ testimony on TR 38 – states that “the subject failed to comply with police directives, pushed respondent, causing him to fall on the ground and ran away citing from (TR 41, 95). The finding that § 87(2)(b) pushed respondent is contradicted by Respondent own words in his and PO Roman’s BWC recordings and PO Roman’s describing that § 87(2)(b) breaks free and starts to run southbound of the Westside Highway (TR38, L2-4). PO Roman gave conflicting testimony. In addition, Respondent’s BWC recording at the seven minutes and thirteen seconds (07:13), which was after § 87(2)(b) was in custody and waiting for EMS, respondent laughably asked a colleague did you see me fall then he admitted to them that he slipped and fell as he was attempting to grab § 87(2)(b) which is inconsistent with Respondent testimony at (TR 95 and 104). Also, in both recordings there no were no evidence that § 87(2)(b) pushed Respondent at any time as the ADCT found based on MOS’ testimonies and not the recorded evidence.

c. "Duration of the action" the duration of the § 87(2)(b) interactions with the MOS until she was apprehended and restrained was approximately four minutes, even though Respondent's entire interactions with § 87(2)(b) ended at ten minutes and fifty-six seconds (BWC - 10:56).

d. "Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders:" Admittedly, § 87(2)(b) fled from the Respondent and his partner. Respondent and his partner had to chase her. However, at the time Respondent used his ASP on § 87(2)(b) neck, she was just tased by PO Roman, brought to the ground by the civilian that straddled her upper body. Further, PO Roman restraining her from at the lower half of her body. Respondent's and his partner's BWC's recording did not totally captured everything that occurred on the ground. Also, PO Roman's testimony (TR 64-67) was inconsistent with recording regarding him tasing § 87(2)(b)

However, all the evidence showed that both MOs were taller and heavier than § 87(2)(b) as well as the civilian participating in capturing § 87(2)(b) PO Roman in the Transcript at Page 41 and Respondent at Page 95 both testified that § 87(2)(b) pushed the Respondent causing him to fall. The foregoing was quoted in the ADTC draft at page 4 and is inconsistent with recorded evidence and Respondent's own admission in the recordings. At the time Respondent used his ASP, § 87(2)(b) was in custody and she was restrained. Based on the law and the totality of the circumstances, the force used at this point was excessive. Respondents applied more force than was reasonable under the circumstances at that time. The Patrol Guide is very clear that the MOS should apply no more than the reasonable force to necessary to gain control. § 87(2)(b) was under MOS and even the civilian control as described above.

Examining the evidence from an objective reasonable standard in Respondent's position and comparing to all the other members of service that participated in the incident, Lt. Singh was the only member to use a prohibited level of force. § 87(2)(b) was already apprehended and could not flee anymore. She was just touch stun tased at least two times and the recorded evidence only showed one of her hands was resting on the asphalt as he on her stomach while on the ground. She had just received several electrical shocks from being tased. The threat to individuals including the MOS was already abated when Respondent used his ASP, he acted without police necessity at that time. In addition, two other larger officers arrived just as her handcuffing was being finalized. The recorded evidence showed that any further actions of non-compliance would fail; based on the amount of MOS that were on the scene within seconds of § 87(2)(b) being brought down to the ground and handcuffed and the participating Civilian that helped was still present.

e. "Whether the subject is actively resisting custody:" § 87(2)(b) did not cooperate with the Respondent, she slipped out of the top she was wearing, and ran away from Respondent's and PO Roman. It is undisputed that she resisted Respondent and PO Roman and she fled from them. However, when Respondent forcibly restrain § 87(2)(b)

with his ASP, § 87(2)(b) already captured, she had no further means of flight and was under restrained.

f. “Whether the subject is attempting to evade arrest by flight:”
The CCRB admits the evidence clearly showed that § 87(2)(b) fled from the Respondent and PO Roman. However, once she was tased, taken to the ground by the civilian, tased while on the ground, restrained by the Civilian and PO Roman she any no further means of flight and the MOS were in control including the Respondent. In addition, six other officers almost immediately on scene as she was being handcuffed and were assisting or ready to assist. (For example, at Respondent TR 129-132).

g. “Number of subjects in comparison to the number of MOS:”
During the forcibly restrained by Respondent there were two MOS on scene and six other MOS arrived during or just hand cuffing process. Also, one civilian was actively participating in the process.

h. “Size, age, and condition of the subject in comparison to the MOS:”
§ 87(2)(b) was younger and smaller than all the MOS that were present. As well as the participating civilian. The recordings showed that her body weight was less than all person present and she was the same height or shorter than all MOS involved and the civilian. § 87(2)(b) informed them that she was on hormones and she is a girl.

i. “Subject’s violent history, if known:”
§ 87(2)(b) only history of violence occurred on that date as described above. However, when Respondent’s restrained her by the neck with his ASP, she was already being held by the civilian that was straddling and sitting on her upper back, PO Roman at her feet holding on to one hand, and just she was just touched stun drive tased at least two times by PO Roman. Also, even when the civilian was no longer on her back since Respondent was now restraining her by neck with his ASP, the civilian remained with the MOS until § 87(2)(b) was taken by EMS.

j. “Presence of hostile crowd or agitators:”
§ 87(2)(b) initial behaviors prior to charged incident was transitory and moving. Even when she was apprehended there was no hostile crowd or agitators. The civilians at the scene supported the MOS and one civilian assisted Respondent and the other MOS by stopping her.

k. “Subject’s apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence:”
The evidence in the recording and Respondent himself showed that § 87(2)(b) was functioning as if something was mentally wrong. Respondent described that she was “EDPish” when he reported the force incident to IAB as required when the Taser is discharged in the drive stun mode, at TR 126-129. Also, the two BWC recordings evidenced that Respondent asked § 87(2)(b) what was wrong with her, he specifically asked if she was on drugs.

PG 221-02, Page 2 Prohibition “12 requires that the MOS assess the situation continually and adjust the use of force as necessary,” the recording evidenced that Respondent Singh did not comply with this rule. He briefly remove the ASP off § 87(2)(b) neck to her shoulder then within in seconds he returned his ASP back to her neck, while she was being restrained PO Roman, civilian now standing there, and other MOS were arriving. Six other MOS arrived and assisted until § 87(2)(b) was taken by the EMS. Also, contrary to ADCT’s finding from pages 5 – 6 of the drafted decision, all the recordings showed Respondent used his ASP as a neck restraining device. His method of restrain wasn’t incidental, Respondent chose to restrain § 87(2)(b) by her neck while she was face down on the concrete roadway.

CCRB request that you compare and contrast the recorded evidence to Respondent’s and PO Roman’s testimonies. Respondent’s description of his ASP evidence in his hearing transcripts especially as he described in at TR 99 to 121. In addition, PO Roman’s testimony at the hearing in the Transcript from pages 46 through 49 regarding how Respondent used his ASP on § 87(2)(b) is inconsistent with the submitted recorded evidence. Further, Respondent admitted that after § 87(2)(b) was handcuffed, her body went limped and she was lifted from the ground by PO Michelle at TR 121.

CCRB asks you to carefully review all the evidence, comparing both MOS’ testimonies with all the recordings that were submitted into evidence, which strongly support a guilty finding of the charged Specification.

For the forgoing reasons, it is respectfully requested that you reject ADCT’s findings regarding Specification one (1), find Respondent Guilty of Specification one (1), and impose the presumptive penalty of forfeiture of twenty (20) vacation days in accordance with the matrix.

Respectfully submitted,

Pamella Fairclough
Pamella Monica Fairclough, Esq
APU Prosecutor
NYC Civilian Complaint Review Board

cc: James Moschella
Karasyk & Moschella, LLP
233 Broadway, Suite 2340
New York, NY 10279
jmoschella@kmattorneys.com